

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No. 383 of 2014.

Ranjit Nandi alias Khokon Nandi being dead
his heirs: Mira Nandi and others.

.....Defendant-Petitioners.

-VS-

Md. Sablu Mia.

..... Plaintiff-Opposite-Party.

Mr. M. A. Azim Khair, with

Mr. Sultanuzzaman, Advocates.

.....for the petitioners.

Mr. Monir Hossain (Kazal), Advocate.

.....for the opposite-party.

Heard on:16.07.2023 and
Judgment on:19.07.2023.

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 05.09.2013 passed by the Additional District Judge, Dewlia Bishayak Adalat, Dhaka in Civil Revision No. 04 of 2013 rejecting the Civil Revision and thereby affirming the order dated 28.11.2012 passed by the Assistant Judge, 2nd Court, Dhaka in Title Suit No. 552 of 2011 rejecting an application under Order 7 Rule 11 of the Code of Civil Procedure should not be set aside and/or pass such other order or further order or orders as to this Court may seem fit and proper.

The facts leading to the issuance of the Rule in a nutshell can be stated that the plaintiff case in short is that the defendant by virtue of kabala Nos. 9979 and 5580 both dated 19.03.1979 and sale deed No. 10088, 10195 and 10223 dated 20.03.1979 became owner in respect of 37.68 decimals of land out of 6258 decimals of land appertaining to C.S. khatian No. 45, C.S. Plot No. 187, corresponding to C.S. Khatian No. 146, R.S. Plot Nos. 829 and 837 and has been in possession thereof. The defendant being in need of money, proposed to sell the Shop No. 3 measuring an area 90 square feet on the second floor of a building situated on aforesaid land and proportionate undivided and un-demarcated land covering an area of 005.97 Ajutangsha out of 5010 Ajutangsha the plaintiff being intended to purchase the said shop. Proposed the defendant for consideration for Tk. 2,00,000/-(two lakh), being agreed, the plaintiff upon receipt of Tk. 35,000/- executed and registered an agreement on 16.08.2010. It has been further alleged that the defendant on 16.03.2011 received Tk. 60,000/- from the plaintiff and acknowledged the receipt thereof by signing on the last page of the agreement. The defendant received an amount of Tk.5,000/- (five thousand) on 14.06.2011 and further an amount of Tk.5,000/-(five thousand) on 20.06.2011 and thereby the

defendant received in total Tk. 1,45,000/-(one lakh forty five thousand). On 14.07.2011 the plaintiff requested the defendant to execute and register the sale deed upon receipt of the balance consideration money but the defendant delayed different plea and ultimately, on 10.08.2011 refused to execute and register the sale deed in terms of the agreement dated 16.08.2010. Therefore, the plaintiff issued legal notice on 14.08.2011 through his Advocate but the defendant did not reply thereof, hence, the plaintiff filed the suit with the averment that the plaintiff is ready to deposit the balance consideration money as order by this Court.

The plaintiff at the time of filing of the suit had no deposited the balance consideration of money as required under the amended provision of law. Subsequently, on 09.01.2012 the plaintiff by filing an application before the trial Court prayed for permission to deposit the balance consideration money and the learned trial Court upon allowing the said application permitted the plaintiff to deposit the balance consideration of money. Accordingly, the plaintiff deposited the balance consideration of money by Treasury Challan and the plaintiff submitted the Challan on 12.01.2012 before the learned trial court.

Thereafter, on 29.08.2012 the case was fixed for return of A.D. although A.D. was not returned. The learned trial Court further fixed on 20.09.2012 for service return. However, 30(thirty) days has already been expired from the date of issuance of registered notice therein on 17.10.2012 was fixed for filing written statement. As the defendant was not aware of the said date and he could not appear on that day and the trial Court fixed on 08.11.2012 for *ex-parte* hearing; on that day the defendant appeared with vokalatnama and prayed for time for filing written statement. The learned trial Court upon rejecting the said application and accordingly, on 28.11.2012 recorded deposition of P.W.1.

On 28.11.2012 the defendant petitioner filed an application under Order 7 Rule 11 of the Code of Civil Procedure for rejecting the plaint on the ground that the bainapatra was executed and registered on 16.08.2010 and the suit was filed on 15.09.2011 which according to the amended provision of law, is barred by limitation. Moreover, according to the amended provision of law, the plaintiff was required to deposit the balance consideration of money at the time of filing of the suit but the plaintiff failed to fulfill the condition for filing the suit as the suit was filed without depositing the

balance consideration of money. As such, the defendant claimed the suit was barred by limitation and prayed for rejecting the plaint.

The plaintiff opposite party on 28.11.2012 filed written objection against the application for rejecting the plaint filed by the defendant-petitioner. After hearing both the parties the learned trial Court rejected the said application under order VII Rule 11 of the Code of Civil Procedure vide by order No.15 dated 28.11.2012.

Being aggrieved by and dissatisfied with the said order dated 28.11.2012 the defendant-petitioner filed a Civil Revision No. 04 of 2013 before the Court of learned District Judge, Dhaka and the aforesaid Civil Revision was transferred to the Court of Additional District Judge, Dewlia Bishayak Adalat, Dhaka for disposal.

After hearing both the parties, the Revisional Court rejected the Civil Revision No.04 of 2013 by the judgment and order dated 05.09.2013.

Being aggrieved by and dissatisfied with the judgment and order dated 05.09.2013 the defendant petitioner filed the instant Civil Revisional application under Section 151(4) of the Code of Civil Procedure before this Court. Heard the

application and granting leave this court, issued the Rule and ad-interim order of stay was granted on 21.01.2014. On 20.05.2019 the order of stay was extended for 1(one) year from date but the order of stay was not subsequently extended. In such circumstances the case is taken up for hearing on merit.

Mr. Sultanuzzaman, the learned Advocate appeared on behalf of the petitioner and Mr. Monir Hossain(Kazol) the learned Advocate on behalf of the opposite party appeared before this court to press and opposes the Rule respectively.

Mr. Sultanuzzaman, the learned Advocate for the petitioner submits that the suit is not maintainable in the eye of law and is barred by limitation. He further submits that admittedly the balance consideration of money as required under Section 21A(b) of the Specific Relief Act, 1877 was not deposited in the trial Court at the time of filing the suit. He further submits that the Courts below committed serious error of law in failing to take into consideration that as per provision of Section 21A(b) of the Specific Relief Act, 1877 the balance consideration amounts is to be deposited at the time of filing the suit. He further submits that the learned Assistant Judge has no jurisdiction to extend the time for depositing the balance consideration of money. The Revisional Court below also failed

to consider the same legal position and thereby out of total misconception of law rejected the revision and affirmed the order of the trial court which appears to committed serious error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate further submits that the Revisional Court below as well as the learned trial Court committed error of law in deciding the issue as to limitation of filing of the suit. The learned Advocate further submits that both the courts below without applying judicial mind to the facts and circumstances of the case and law bearing on the subject most illegally disallowing the prayer for rejection of the plaint and the same has occasioned failure of justice. In support of his contention he has referred the decisions reported in (1) 29 BLD 29 and (2) 69 DLR(AD) 239.

Mr. Monir Hossain (Kazal), the learned Advocate for the opposite party submits that the suit was not barred by limitation. The plaintiff-opposite-party proceeded before the Court in time and at the time of filing the Suit for Specific Performance of Contract the plaintiff inadvertently did not deposit the balance consideration of money. Thereafter, on the prayer of the plaintiff-opposite-party the learned trial Court

allowed the said application on 09.01.2012 in giving a direction upon the plaintiff to deposit the balance amount of consideration. Accordingly, the plaintiff deposited the balance consideration of money through Treasury Challan on 12.01.2012 which was delay accepted by the trial Court and that time the defendant did not raise any objection against the order allowing the trial court as per Court order is not illegal.

He further submits that the Provision of Section 21A(b) of the Specific Relief Act, 1877 is not mandatory provision of law rather, it is directory. The learned Advocate further submits that the provision of Section 21A of the Act and Section 21A(b) provides that the balance amount of consideration of the contract is deposited in the court at the time of filing of the suit for specific performance of contract although, the provision of section 21A of the Act, does not provide for the consequence, if the suit is filed without depositing the balance amount of consideration of the contract in the court. Therefore, it is mere directory and not mandatory and as such the Rule is liable to be discharged. In support of his contention he has referred the decisions reported in (1) Md. Darul Islam being dead his heirs : 1. Most. Parul Bewa and others Vs. Md. Tamijul Islam and others, reported in 23 BLT 30 and (2) Most. Sufia Khatoon Vs.

Mrs. Mahabuba Rahman and others, reported in 30 BLD(AD) 41.

The point of determination of the Rule is whether is the impugned judgment and order in not rejecting the plaint sustainable in law. Admittedly there was a registered deed of sale (Bainapatra) for selling the suit property executed between the parties on 16.08.2010.

The learned revisional Court below as well as learned trial Court observed that the suit was not barred by limitation and the agreement was registered on 16.08.2010 and the defendant petitioner acknowledged the receipt of money on different dates by signing on the last page of the agreement. He received the final amount of Tk. 5000/- on 20.06.2011 and thereafter the suit was filed on 15.09.2011 i.e. within one year of receiving the amount. Therefore, the suit was filed before the learned Assistant Judge, 2nd Court, Dhaka within time.

Now, another question is that at the time of filing the plaintiff opposite party did not deposit the balance consideration of money Tk. 35,000/- and the learned trial Court allowed the application in giving a direction upon the plaintiff to deposit the balance amount of consideration and accordingly balance amount was deposited as per court's order whether the

balance amount of consideration of the contract to deposit in the court at the time of filing of the suit for specific performance of contract is mandatory.

The petitioner claimed that admittedly the balance consideration of money as required under section 21A(b) of the Specific Relief Act, 1877 was not deposited at the time of filing of the suit. It is clearly barred by the provision of section 21A(b) of the Act. The learned trial court has no jurisdiction to allow the application for depositing the balance consideration of money after filing the suit. There is a mandatory provision of law. The learned Advocate has referred the case of Md. Alauddin Bepari Vs. Somala Khatoon and others, reported in 29 BLD 29 wherein it has been held that:

“After the amendment of the Specific Relief Act, 1877 (Act No. I of 1877) under Act No. 27 of 2004 incorporating a new Section 21 A which came into play with effect from 1st July, 2005 and the same being a mandatory provision of law the plaintiff had no other alternative but to have deposited the balance amount of the consideration of the contract in the Court at

the time of filing of the suit for Specific Performance of Contract and the same having not been deposited in the Court at the time of filing of the suit, the learned Joint District Judge should have rejected the plaint under Order 7 Rule 11(d) of the Code of Civil Procedure.”

And he also referred to case of Abdul Kalam (Md) Vs. Md. Mohiuddin and others, reported in 69 DLR(AD) 239 wherein it has been held that:

“The deposit of the balance consideration of the contract before filing a suit for specific performance of the contract is a condition precedent and that having not been done in the case, that suit was barred under section 21A(b) of the Act. The plaint was liable to be rejected under Order VII, rule 11 of the Code.”

On the other hand, the opposite party claimed the provision of Section 21A(b) of the Specific Relief Act is not mandatory provision of law rather it is directory and at the time of filing of the suit the plaintiff did not deposit the balance

consideration of money due to inadvertence and he prayed before the learned trial court to deposit the balance consideration of money. Accordingly, the trial court allowed the application and also directed to deposit the balance consideration of money. Thereafter, the plaintiff deposited the balance money amount of Tk.55,000/- (fifty five thousand) through Treasury Challan as per court's order. So the legal requirements have been fulfilled by compliance court's order. His submission gets support in case of Md. Darul Islam being dead his heirs: 1. Most. Parul Bewa and others Vs. Md. Tamijul Islam and others as reported in 23 BLT 30.

“The provision of Section 21A is merely directory and not mandatory since there is no legal mandate to stop or dismiss the suit if balance amount of consideration of the contract is not deposited in the Court at the time of filing of the suit for Specific Performance of Contract. So, I find no difficulty in holding that, if a litigant for any reason after taking permission from the Court filed the suit and later on he made the deposit of the balance amount of

consideration of the contract in the Court as per order of the Court, in such case it cannot be said that the suit is barred by Section 21A of the Specific Performance of Contract.”

And he also referred to the case of Most. Sufia Khatoon Vs. Mrs. Mahabuba Rahman and others, reported in 30 BLD(AD) 41, where it has been held:

“A judgment ‘per incuriam’ or a judgment sub silentio does not constitute a precedent. From the scheme of the law it appears that 93A provided a complete law for requisition and acquisition of the property and also payment of compensation and as per Section 93(4)(h), once the property is requisition under this law the same shall vest absolutely in the Board free from all encumbrances and the period of such requisition of such property shall end.”

I have perused that the submission made by the learned Advocates and from materials placed before this court as well as on going through the impugned judgment and order the

following questions have to be decided by the court: (i) as to whether making deposit of contractual amount at the time of filing of the suit for Specific Performance of Contract as against the alleged registered agreement dated 16.08.2010 was mandatory or directory (ii) for non-depositing of the said amount at the time of filing of the suit whether was fatal rendering the plaint to be rejected under order VII Rule II of the Code of Civil Procedure and (iii) whether the learned trial court has got any jurisdiction to enlarge time following the plaintiff to make depositing of the contractual amount at this stage. All the issues are taken up together for decision.

It is admitted that the contract in question was executed on 16.08.2010 and that was a registered contract i.e. Bainapatra. The defendant was received an amount of Tk.5,000/-(five thousand) on 20.06.2011 and the suit was filed on 15.09.2011 without depositing the balance consideration of money. The Specific Relief Act has been amended by adding Section 21A vide Act 27 of 2004 which runs thus:

“21A. Notwithstanding anything to the contrary contained in this Act or any other law for the time being in force, no contract

for sale not any immovable property can be specifically enforced unless:

(a) The contract is in writing and registered under the Registration Act, 1908, whether or not the transferee has taken provision of the property or any part thereof, and

(b) the balance amount of consideration of the contract is deposited in the Court at the time of filing the suit for specific performance of the contract.”

That provision does not make any provision exempting a purchaser from making deposit of the consideration money at the time of filing of the suit for Specific Performance of Contract as provided in Section 21A of the Specific Relief Act, 1977. So it appears that the requirement of making deposit of consideration of money is the condition precedent for filing a suit for Specific Performance of Contract after 01.07.2005 irrespective of any agreement whether registered or unregistered.

On reading of Section 21A of the Specific Relief Act, it further appears that the provision for depositing the balance consideration money is a condition precedent failing which it

would not be possible to enforce the contract by filing a suit. This provision has made no distinction between an unregistered contract and a registered contract, so far the case of payment of consideration money at the time of filing the suit is concerned. There is no scope of any option or discretion which can be applied to dispense with the deposit of money within a period prescribed by law.

In view of the above considered the provision of Section 21A(b) of the Act. The language of the section is so unambiguous that it does not require any interruption to come conclude that the requirement of depositing the balance consideration amount at the time of filing the Suit for Specific Performance of Contract is mandatory failing which the suit is not maintainable. The learned trial Court has no discretion to extend the time for making deposit of consideration of money at the time of filing of the suit. The very Specific Provision of Section 21A(b) provides that the balance consideration of money is required to be deposited at the time of filing of the suit. This view finds support our Appellate Division in Abul Kalam (Md) Vs. Md. Mohiuddin and others, case reported in 69 DLR(AD) 239.

It appears that the learned Assistant Judge, 2nd Court, Dhaka as well as the learned Additional District Judge, Dewlia Bishayak Court, Dhaka rejected the application under Order 7 Rule 11 of the Code of the Civil Procedure and thereby committed an error in the decision occasioning failure of justice and as such the same is not sustainable in law. The suit is barred by the provision of section 21A(b) of the Act. Therefore, the plaint is liable to be rejected under Order VII Rule 11 of the Code of Civil Procedure, 1908.

The deposition of balance consideration of the contract at the time of filing the suit is mandatory. The Court shall not entertain any plaint for Specific Performance of Contract unless the copy of challan of balance consideration is submitted with the plaint because the deposit of the balance consideration of the contract before filing a suit for Specific Performance of the Contract is a condition precedent. But in the instant case it has not been done, consequently, the suit is barred by the provision of Section 21A(b) of the Act.

In view of the above the facts and circumstances of the case, I find merit in this Rule.

However, it appears from the order passed by the trial Court that the plaintiff deposited the balance consideration of

Tk.55,000/-(fifty five thousand) of the contract in the Court at the time of filing the suit and the defendant received an amount of Tk.1,45,000/-(one lakh forty five thousand) as advance consideration amount from the plaintiff at the time of execution of contract for sale. Since the suit is not maintainable and as such justice will be best served if the trial Court is directed to return the said amount i.e. amount of Tk.55,000/- (fifty thousand) to the plaintiff and the defendant is also directed to return the advance consideration of Tk.1,45,000/-(one lakh forty five thousand) to the plaintiff otherwise multiplicity of the suit will arise again for recovery of money.

Hence, the Rule is made absolute.

The impugned judgment and order dated 05.09.2013 passed by the learned Additional District Judge, Dewlia Bishayak Adalat, Dhaka in Civil Revision No.04 of 2013 rejecting the Civil Revision and affirming the judgment and order dated 28.11.2012 passed by the learned Assistant Judge, 2nd Court, Dhaka in Title Suit No.552 of 2011 is hereby set aside and the plaint is rejected.

The learned trial court is directed to return the amount of Tk.55,000/-(fifty five thousand) to the plaintiff and the defendant is directed to return the receiving amount of

Tk.1,45,000/-(one lakh forty five thousand) to the plaintiff within 3(three) months from receipt of this judgment and order without fail.

However, there will be no order as to cost.

The order of stay granted earlier by this court is hereby recalled and vacated.

Communicate the judgment and order at once.

Md. Abadul Haque/Bench Officer.